

Faizul Hasan v. State of U.P.

Allahabad High Court · Division Bench · 31 May 2018 · Writ-C No. 20742 of 2018 · **Writ disposed; objection to assessment in four weeks; recovery to abide.**

HEADNOTE

A recovery citation for electricity arrears, challenged as issued without a valid provisional or final assessment under the U.P. Electricity Supply Code, 2005, was not kept pending. The consumer was directed to file an application before the assessing authority, to be treated as an objection to the proposed assessment and decided within four weeks, with recovery to abide that order. Theft of electricity is compoundable under Section 152 of the Electricity Act, 2003.

FACTUAL SUMMARY

Faizul Hasan challenged a recovery citation for electricity arrears, alleging it issued without a valid provisional or final assessment. The Electricity Department said the dues arose from theft, with an FIR already annexed to the petition. The Division Bench heard both sides on 31 May 2018. A later correction application substituted the citation date in the order from 5 May 2018 to 15 May 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

recovery citation without assessment

HOLDING

Where a recovery citation for electricity arrears is challenged as issued without a valid provisional or final assessment after due notice under the U.P. Electricity Supply Code, 2005, the writ court need not keep the petition pending. The consumer may apply to the assessing authority; that application is to be treated as an objection to the proposed assessment and decided within a fixed time, and recovery shall abide the decision. ¶ 1

FLAG Supply Code 2005 invoked for provisional/final assessment without a clause number

HOLDING-UNIT · EA2003::152

compounding of theft

HOLDING

Theft of electricity is a compoundable offence under Section 152 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A VALID PROVISIONAL OR FINAL ASSESSMENT HAD IN FACT BEEN MADE, AND THE QUANTUM OF DUES

Left to respondent no. 3 on the petitioner's objection, with recovery to abide that order. ¶ 1